

23SMCV05984 23SMCV05984

County: los-angeles

Division: Civil Law and Motion

Department: I

Hearing date: 2026-08-06

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CI%2C08%2F06%2F2026

Source SHA-256: e609905c21c30a715c448e07caabe14bc4f47e690b69710595fccf6cc916872e

Case Number: 23SMCV05984 Hearing Date: August 6, 2026 Dept: I

This is an application to shorten time to hear a motion to compel the attendance of a witness—specifically defendant's PMK. The FSC is set for August 17, 2026, and the trial is set for August 24, 2026. The motion is currently set for November 6, 2026, and the prior application to continue the trial (essentially for this purpose) is set for the date of the FSC. The motion to compel the PMK's attendance was filed on July 27, 2026. That is the motion for which plaintiff seeks to shorten time.

The PMK deposition had begun on January 16, 2026, but was not completed on that date in part due to the claim that not all documents had been produced. On July 8, plaintiff served its notice of deposition to complete the deposition, and the deposition was set for July 22, 2026. At that time, the trial had already been continued to the now-current August 24 date. (It had been set for February, 2026.) Defendants objected to the deposition, but stated that the witness would appear subject to the objection. However, on the deposition date, no one appeared. Plaintiff claims to have attempted to resolve the issue informally, but had no success. Plaintiff states that it could not have brought this motion before July 22 because until then, it assumed the deposition would go forward.

As some background, during the first day of the deposition, the witness apparently stated that he had made no effort to get the documents that had been requested in the notice even though he could have obtained the documents. The documents go to Frumes' employment file as we;; as registration and insurance concerning the vehicle Frumes was driving. Plaintiff's concern is that the defendant in question—Frumes's employer—might contend that Frumes was not acting within the course and scope of her employment at the time of the accident. In an email exchange, it appears

that the statement by the defense that the witness would appear subject to objections was in error and should have said that the witness would not appear at all—although that was after the fact. Defendants' counsel apparently wrote that plaintiff's view was nonsensical in that plaintiff's counsel stated that the deposition would not go forward without the documents.

The court has some sympathy for all parties here.

Defendants' counsel has not acted well in prior discovery matters. One would have hoped counsel would be better here. On the other hand, the court does not understand that plaintiff really wants to ask the PMK questions—rather the deposition seems to be a way to get the documents, perhaps more quickly than a regular RFP. There is nothing wrong with that, but it does give some heft to the notion that the deposition would have been nonsensical had documents not been produced. On the other hand, defendants' objections indicate that counsel has learned nothing from the court's prior ruling and still is acting in bad faith. (Objecting that it need not produce any information regarding insurance is a proposition for which the court would love to see authority, nor does the insurance policy seem to be protected from discovery by any right to privacy under the California Constitution, and it is hard to see how an insurance policy is protected by the attorney/client privilege, as defendants' counsel seems to assert). That said, plaintiff has given no reason why it waited over five months after the first day of the deposition to press this issue. Although plaintiff says that waiting until the eve of trial is how counsel defines diligence, the court's definition is a bit different.

Therefore, the motion to shorten time is GRANTED. The motion will be heard at the FSC. Any opposition to the motion will be due no later than noon on August 10, 2026. Any reply will be due by noon on August 12, 2026. The court is of the view that the trial is unlikely to go forward on the scheduled date as the court very much doubts that the parties will have the FSC materials ready—even putting this issue to one side. Neither party seems to be taking this case seriously enough. That issue will be discussed at the FSC as well. The court could be wrong. It could be that defense counsel will turn over the documents—which for reasons unknown it claims it cannot do due to privilege or vagueness. And it could be that the parties are able to work together to get the FSC materials ready in time. Or it could be that counsel are just not giving this case any sort of real priority notwithstanding the upcoming trial date.